Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard on Wednesdays at 9:00 a.m.

Date: July 8, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Activate Clean Energy, LLC vs. DMX Engineering, LLC	**TENTATIVE RULING:** For the reasons set forth below, Defendant and Cross-Complainant Igor Gorovenko's motion to strike the answer by Cross-Defendants Activate Clean Energy, LLC, Rasa Energy, Inc., David Martin, William Wismann, Robert Kendall, Anthony Buda and Ernest Lee to the second amended cross-complaint is DENIED, without prejudice. The court, on its own motion, orders the parties to meet and confer in person and/or telephonically on the 34 affirmative defenses alleged in the answer to the second amended cross-complaint within 10 days of this hearing. To the extent that the parties do not reach an agreement to stipulate to an amended answer being filed, the court, on its own motion, extends the deadline for Cross-Complainant to file a demurrer to the answer to the second amended cross-complaint to 30 days after this hearing. Any amended answer to the second amended cross-complaint should address the deficiencies with the current answer discussed below. Any subsequently filed demurrer should address the deficiencies with the current demurrer discussed below.

An answer to a complaint shall contain: (1) the general or specific denial of the material allegations of the complaint controverted by the defendant and (2) a statement of any new matter constituting a defense. Code Civ. Proc. § 431.30(b) (Emphasis added). The same pleading of ultimate facts rather than legal conclusions is required in pleading an answer as in pleading a complaint. (*See FPI Development, Inc. v. Nakashimi* (1991) 231 Cal. App. 3d 367, 384).

Here, Cross-Complainant moves to strike the answer under section 436. That section states: " A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc. § 436.)

Cross-Complainant's motion, however, is procedurally defective.

First, the motion is untimely. A motion to strike must be filed "within the time allowed to respond to a pleading ...." (*City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913, citing Civ. Proc. Code § 435, subd. (b)(1).) A person who has filed a cross-complaint may respond to the answer of his pleading within 10 days after service of the answer. (Code of Civ. Proc. §430.40(b)). Cross-Defendants Activate Clean Energy, LLC, Rasa Energy, Inc., David Martin, William Wismann, Robert Kendall, Anthony Buda and Ernest Lee filed an answer to the second amended cross-complaint on March 9, 2026, which was served by overnight mail. Cross-Complainant did not file this motion to strike until March 24, 2026. Cross-Complainant's motion was due, however, one day earlier on March 23, 2026 (10 days after March 9, 2026, plus 2 additional court days for overnight service).

Second, the notice is defective. "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. R. Ct. 3.1322).

Third, Cross-Complainant purports to seek an order striking various affirmative defenses. However, the body of the motion appears to challenge the sufficiency of how the affirmative defenses are pled.

For the above reasons, the motion to strike must be denied.

Despite these procedural defects, however, the court finds that Cross-Complainant's arguments are well taken. Cross-Defendants have asserted 34 affirmative defenses. Some of the "affirmative defenses"

		alleged do not constitute new matter, but are merely defenses to Cross-Complainants' causes of action (e.g., "Excessive Alleged Damages," "Alleged Excessive Fines," "Due Process," "No Duty," "No Breach of Duty," etc.) Further, none of the affirmative defenses contain sufficient ultimate facts to give Cross-Complainant notice of the basis for the affirmative defense. Cross-Defendants' affirmative defenses, as currently pled, needlessly expand the scope of this action, discovery, and the defenses that Cross-Complainant must address at trial and/or on a motion for summary judgment/summary adjudication. As such, the court's ruling reflects the court's desire for the parties to informally resolve these issues, eliminate unnecessary affirmative defenses, provide sufficient ultimate facts for the affirmative defenses alleged, and narrow/streamline the scope of this action. Moving Party to give notice.
2	Barbosa vs. Prime Healthcare Foundation, Inc.	**TENTATIVE RULING:** For the reasons set forth below, the demurrer by Defendants Peter Himber, Larry Lanauer, and Jack Stanton to the first amended complaint is OVERRULED. **<u>Legal Standard</u>** A demurrer challenges the sufficiency of a pleading by raising questions of law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *ABF Capital Corp. v. Berglass* (2005) 130 Cal.App.4th 825, 833.) As such, the only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) On the other hand, "a trial court does not abuse its discretion by sustaining a general demurrer without leave to amend if it appears from the complaint that under the applicable substantive law there is no reasonable possibility that an amendment could cure the complaint's defect." (*Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 486.) In ruling on a demurrer, the trial court must accept as true all material facts properly pleaded in plaintiff's petition, disregarding only conclusions of law and allegations contrary to judicially noticed

facts. (*Burt v. County of Orange* (2004) 120 Cal.App.4th 273, 277.) All that is necessary as against a general demurrer is to plead facts entitling the plaintiff to some relief under any possible legal theory. (*Woods v. Superior Court* (1981) 28 Cal.3d 668, 673.)

Exhaustion of Administrative Remedies

Defendants argue that the First Amended Complaint is subject to Demurrer, because, pursuant to the Lanterman Act, Plaintiff was required to exhaust administrative remedies prior to filing her complaint.

As the court previously ruled in its 10/1/25 Minute Order, the fair hearing procedure only applies to "all issues concerning the rights of persons with developmental disabilities to receive services under this division…." (Welf. & Inst. Code, § 4706, subd. (a); *Michelle K. v. Superior Court* (2013) 221 Cal.App.4th 409, 423.) For example, this includes situations where the plaintiff takes issue with the individual program plan developed by a regional center. (*Shahtout by and through Shahtout v. California Psychcare, Inc.* (C.D. Cal. 2022) 562 F.Supp.3d 913, 922-923; see *Harbor Regional Center v. Office of Administrative Hearings* (2012) 210 Cal.App.4th 293, 308.)

While the First Amended Complaint makes passing reference to the Lanterman Act (First Amended Complaint, ¶¶ 11, 12 57, 59, 60), Plaintiff's allegations against Defendants do not take issue with the services Defendants provided to the Decedent. Instead, Plaintiff is critical of Defendants because they allegedly failed in their duties as Decedent's caretaker, and such failure resulted in Decedent's injury, and subsequent death. (First Amended Complaint, ¶¶ 63-72, 76-81, 86-88, 92.)

None of the cases Defendants cite in its Demurrer – *Michelle K.*, *Conservatorship of Whitley*, *In re Michael K.*, *Bouslog, S.C. v. County of Los Angeles, Shahtout,* or *Kimiko* – applied to scenarios such as this one, i.e., where Plaintiff alleges Defendant itself played a direct role as Decedent's care custodian. The court has not located a case that stands for the proposition that any and all claims against a regional center and its employees/agents, regardless of the type of claim, are subject to the fair hearing requirement.

The court also notes that the demurrer is extremely untimely. Defendants were served with the first amended complaint on 2/19/25. (See ROA## 138, 140, 148). Defendants did not file the demurrer until 2/20/26—over one year later. (See Code of Civ. Proc. § 430.40(a) (deadline to file demurrer is 30 days after service of the

		complaint). Defendants have not obtained any relief from the court to extend the deadline to file a demurrer. For these reasons, the court overrules the Demurrer. Moving Defendants to give notice.
3	Nguyen vs. TD Bank	**TENTATIVE RULING:** For the reasons set forth below, Defendant TD Bank, NA's demurrer to Plaintiff Kimberly Nguyen's First Amended Complaint is SUSTAINED. Plaintiff is granted one final opportunity for leave to amend her complaint. **<u>Statement of Law</u>** A demurrer only tests the sufficiency of the pleadings. (*See Satyadi v. West Contra Costa Healthcare District* (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]). In reviewing the propriety of the sustaining of a demurrer, the "court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed 'if any one of the several grounds of demurrer is well taken. [Citations.]' [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment." (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379 [citing *Aubry v. Tri–City Hospital Dist*. (1992) 2 Cal.4th 962, 967].). A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.) **<u>First Amended Complaint (FAC)</u>** Plaintiff filed her FAC on 5/7/26 on Judicial Council form PLD-C-001. However, under Paragraph 8 of the FAC, Plaintiff does not

		check the box for breach of contract but rather checks the box for "other" causes of action and alleges the following: "Only authorized registered accounts/customers, banks are agents for receiving money on behalf of these customers CA Fin Code § 105.2." She also alleges the following under Paragraph 9: "Banks violated CA Com § 11105 rule for fund transfer to authorized accounts, customers regulating how banks process payment orders on behalf of their clients, due to no authorized account/customer on bank system, banks are not authorized … ." Plaintiff attaches a declaration in support of the FAC wherein she declares the following: "I called these banks for the information of the accounts that money wired to. They all said those accounts did not exist in their systems. So the banks created the accounts and deleted without the trace. But the money I sent to these banks were kept by them without return. By USA business law, the record of all customers must be kept for 7 years. My case in court reported last year Feb 01 2024 as scam happened to me and I reported in end of Feb 2024. Now I got the final judgement to follow the debtor. I called the bank where the debtor registered the account to get my money. The agent/bank agents said there is no such account numbers that I had on my records of bank transactions of Well [sic] fargo to their banks." Defendant contends that Plaintiff's cause of action for breach of contract fails because Plaintiff failed to state any contract between Defendant and Plaintiff. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [elements of breach of contract are: (1) the existence of the contract, (2) plaintiffs' performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.]). Defendant also contends that Plaintiff's claims are preempted by Division 11 of the California Uniform Commercial Code, which governs wire transfers, and that Plaintiff's entire FAC is uncertain. While Plaintiff used Judicial Council form PLD-C-001 for her FAC, it appears that Plaintiff does not actually allege a cause of action for breach of contract. Instead, Plaintiff alleges that Defendants violated Fin. Code § 105.2 and Comm. Code § 11105 because they failed to return the money that Plaintiff sent via wire transfer. Defendant contends that Comm. Code § 11202(a) provides that the customer is exclusively liable for the loss of an authorized payment order. Comm. Code § 11202, subd. (a), provides: "A payment order received by the receiving bank is the authorized order of the person

		identified as sender if that person authorized the order or is otherwise bound by it under the law of agency." Defendant also cites to *Zengen v. Comerica Bank* (2007) 41 Cal.4th 239, in support of its argument that the analysis of funds transfer under these sections results in a determination of whether or not the funds transfer was "authorized," and "provides a very specific scheme for allocation of loss." (*Id.* at 252). However, the Supreme Court in *Zengen* also held: > This is not to say that the Uniform Commercial Code necessarily displaces all common law actions based on all activities surrounding funds transfers. One court has explained that "[t]he exclusivity of Article 4–A is deliberately restricted to 'any situation covered by particular provisions of the Article.' Conversely, situations not covered are not the exclusive province of the Article." (*Sheerbonnet, Ltd. v. American Exp. Bank, Ltd.* (S.D.N.Y.1995) 951 F.Supp. 403, 407–408.) The *Sheerbonnet* court held that the Uniform Commercial Code did not displace causes of action based on a bank's crediting funds from a payment order to the account of an insolvent company even though the bank knew the account had been frozen, and then asserting its own rights to the funds as an off-set against debts owed to it by the insolvent account holder. (*Id*. at pp. 405.) It concluded that no portion of the Uniform Commercial Code "directly addresses the allegations" of the case. Accordingly, the first step is to determine whether Plaintiff is asserting a cause of action that is preempted by statute, or a common law cause of action that is not addressed by the Uniform Commercial Code. Here, Plaintiff alleges that TD Bank, NA created a bank account, Plaintiff transferred money to that account, and then TD Bank contended that those accounts did not exist, violating Fin. Code § 105.2 and Comm. Code § 11105. It appears that Financial Code § 105.2 has been repealed; however Financial Code § 105 provides the following: "Banks are divided into the following classes: (a) Commercial banks. (b) Industrial banks. (c) Trust companies." Fin. Code § 109 provides: "'Commercial banking business' includes, but is not limited to, the business of soliciting, receiving, or accepting of money or its equivalent on deposit as a regular business whether

		the deposit is made subject to check or is evidenced by a certificate of deposit … ." In either event, neither statute provides a basis for liability. Next, Comm. Code § 11105 provides: (a) In this division: (1) "Authorized account" means a deposit account of a customer in a bank designated by the customer as a source of payment of payment orders issued by the customer to the bank. If a customer does not so designate an account, any account of the customer is an authorized account if payment of a payment order from that account is not inconsistent with a restriction on the use of that account. (2) "Bank" means a person engaged in the business of banking and includes a savings bank, savings and loan association, credit union, and trust company. A branch or separate office of a bank is a separate bank for purposes of this division. (3) "Customer" means a person, including a bank, having an account with a bank or from whom a bank has agreed to receive payment orders. (4) "Funds-transfer business day" of a receiving bank means the part of a day during which the receiving bank is open for the receipt, processing, and transmittal of payment orders and cancellations and amendments of payment orders. (5) "Funds-transfer system" means a wire transfer network, automated clearinghouse, or other communication system of a clearinghouse or other association of banks through which a payment order by a bank may be transmitted to the bank to which the order is addressed. … As with Fin. Code § 109, this section provides definitions and does not provide any basis for liability. It is unclear how T.D. Bank violated either of these statutes. With regards to Plaintiff's allegations in her attached declaration, Plaintiff alleges/declares that "the banks created the accounts and deleted without the trace. But the money I sent to these banks were kept by them without return." However, Plaintiff also declares that she received a judgment against the "debtor", and called the bank where the debtor registered the account to get her money. Therefore, on the one hand, Plaintiff is alleging that TD Bank kept her money and that the bank accounts do not exist, but on the other hand,

		Plaintiff is alleging that she obtained a judgment against a separate debtor for these wire transfers, and is attempting to collect this judgment against the debtor by going through the debtor's banks. The court finds that Plaintiff's claim "is so incomprehensible that a defendant cannot reasonably respond." (*Lickiss v. Fin. Indus. Regul. Auth*. (2012) 208 Cal.App.4th 1125, 1135). As explained above, Plaintiff's FAC is uncertain because the statutes that Defendant allegedly violated do not provide a basis for liability, and the allegations against Defendants as stated in Plaintiff's declaration are unclear as to Defendant's liability, whether the Defendant-or the judgment debtor- kept her money, and whether the basis for liability is preempted by the Uniform Commercial Code. Accordingly, the demurrer is sustained. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling. Defendant TD Bank shall give notice.
4	Nguyen vs. Uriarte	**TENTATIVE RULING:** **Demurrer to Complaint** For the reasons set forth below, the Demurrer to the Complaint brought by Defendant the Santa Ana Police Department is OVERRULED; however, the Demurrer to the Complaint brought on behalf of Defendant the City of Santa Ana is SUSTAINED, with 30 days leave to amend. **<u>Demurrer brought by the Santa Ana Police Department</u>** Defendant the City of Santa Ana asserts that "it is the only proper party defendant in this lawsuit besides Officer Uriarte because the Santa Ana Police Department is not a separate legal entity…." (Demurrer: 5:8-10.) In making this argument, Defendant relies in part on *Darby v. Pasadena Police Dept.* (5th Cir. 1991) 939 F.2d 311 (*Darby*), wherein the 5th Circuit Court of Appeals, explained that "[t]he capacity of an entity to sue or be sued 'shall be determined by the law of the state in which the district court is held.'" (*Id.* at 313.)

In affirming dismissal of the Pasadena Police Department (located in Pasadena, *Texas*) the *Darby* Court explained: "The Texas Code grants all authority to organize a police force to the city itself." (*Darby, supra,* 939 F.2d at p. 313, citing Texas Local Gov't Code Ann. § 341.003.) The Court further noted that "the Home Rule Charter of the City of Pasadena in turn reserved to the municipality itself the power to sue and to be sued." (*Darby, supra,* 939 F.2d at p. 313, citing Home Rule Charter, City of Pasadena, Texas, Art. 1, § 2.)

Thereafter, the 5th Circuit, citing federal authorities, explained that, "unless the true political entity has taken explicit steps to grant the servient agency with jural authority, the agency cannot engage in any litigation except in concert with the government itself." (*Darby, supra,* 939 F.2d at p. 313.)

Similar to the above, Defendant cites *Vermillion v. Lacey Police Department* (W.D. Wash. 2017) 2017 WL 5009696, wherein a district court partially granted summary judgment, after reviewing "the City of Lacey Municipal Code" and finding "no legislative intent to treat the city and the police department as separate legal entitles capable of being sued separately." (*Id.* at p. 3.)

The sole California authority cited by Defendant in the demurrer, in support of this argument, is *Sheehan v. Bd. of Police Com'rs of City and County of San Francisco* (1922) 188 Cal. 525, wherein the Court noted that the board of police commissioners for the city and county of San Francisco had "no separate existence and [was] incapable of either suing or being sued…." (*Id.* at p. 532.) This conclusion was reached after the Court explained that "[t]he police relief and pension fund of said municipality is provided for in chapter X of article VII of the San Francisco charter" and "[t]he only function which the board of police commissioners, acting *ex officio* as the board of police relief and pension fund commissioners, have to perform in relation to said fund is that of determining who, among the members of the police department of said municipality….are entitled to receive such pension…" (*Id.* at pp. 530-531.)

The above authorities offer little guidance here, with respect to the separate existence of the Santa Ana Police Department.

In responding to the above authorities, Plaintiff cites *Peterson v. City of Long Beach* (1979) 24 Cal.3d 238 (*Peterson*), wherein the California Supreme Court addressed "whether the Long Beach Police Department Manual contains regulations of a public entity," such as to invoke the presumption included within Evidence Code section 669. (*Id.* at pp. 241-242.) In finding the manual *did* qualify as a regulation

		of a "public entity" the Court relied on Evidence Code section 200, which defines a "public entity" to include "a nation, state, county, city and county, city, district, public authority, public agency, or any other political subdivision or public corporation, whether foreign or domestic." (Evid. Code, § 200; See also *Peterson, supra,* 24 Cal.3d at pp. 243-244.) The Court concluded: "A city is a public entity. But so are the office of its city manager and the department that its police chief directs. Each traditionally has been regarded as an 'agency' of the city, obviously 'public.'" (*Id.* at p. 244.) As perhaps more succinctly summarized by *Minch v. Department of California Highway Patrol* (2006) 140 Cal.App.4th 895, in *Peterson* "the Supreme Court held that a city police department manual was a quasi-legislative measure that came within the provisions of Evidence Code section 669." (*Id.* at p. 907.) "However, the Legislature subsequently enacted Evidence Code section 669.1 to provide that a rule, policy, manual, or guideline of state or local government setting forth standards for employees in conduct of their employment shall not be considered a statute, ordinance or regulation unless formally adopted in the manner necessary for the adoption of statutes, ordinances, and regulations." (*Ibid.*) *Peterson* did not consider and offers no clear guidance, as to the means of determining whether a city police department is a separate legal entity capable of being sued. However, relying on the invocation of Evidence Code section 200 included within *Peterson*, the 9th Circuit Court of Appeals, in *Shaw v. State of California Dept. of Alcoholic Beverage Control* (9th Cir. 1986) 788 F.2d 600 (*Shaw*), held that a police department could be sued independently. (*Id.* at p. 605.) Pursuant to Government Code section 945, "[a] public entity may sue and be sued." (Gov. Code, § 945.) Additionally, pursuant to Evidence Code section 811.2, a "public entity" includes "the state, the Regents of the University of California, the Trustees of the California State University and the California State University, a county, city district, public authority, public agency, and any other political subdivision or public corporation in the State." (Gov. Code, § 811.2.) Noting that "[t]he courts of California have not expressly determined whether a police department is a public entity under section 811.2" the 9th Circuit in *Shaw* relied on the conclusion in *Peterson,* that the Long Beach Police Department constituted a "public entity" pursuant to Evidence Code section 200. (*Shaw, supra,* 788 F.2d 600, 604.) The *Shaw* Court summarized *Peterson* has having "rejected the

		‘sovereignty’ test and held that a police department was a public entity under section 200 because it was a public agency.” (*Ibid.*) “In none of these cases were city charter provisions even mentioned, and indeed the terms of the charter are irrelevant.” (*Ibid.*) Based on the above, the 9th Circuit concluded “that the courts of California would hold that the Police Department is a public entity under section 811.2,” and consequently could be independently sued. (*Shaw, supra,* 788 F.2d at p. 605.) Again, as mentioned above, *Peterson* did not consider whether a police department could be independently sued and, as conceded by the 9th Circuit, did *not* find that a police department qualifies as a “public entity,” pursuant to either Government Code sections 811.2 or 945; Instead, the 9th Circuit extrapolated from *Peterson,* in order to reach a determination, it thought *most likely* to be reached by a California Court, considering such a question. Although not offered by any party, *Vann v. City and County of San Francisco* (2023) 97 Cal.App.5th 1013 offers more recent guidance, as to the above question. As the Court in *Vann* explains: > “Turning to whether SFMTA is independent from the City, the parties refer us to a number of authorities for guidance on the issue. One of those is Government Code section 945, which provides that ‘[a] public entity may sue and be sued.’ (Gov. Code, § 945.) ‘Public entity’ is defined to include ‘the state …, a county, city, district, …public agency, and any other political subdivision or public corporation in the State.’ (Gov. Code, §811.2) However, the California Law Revision Commission’s comments to Government Code section 811.2 state that ‘[t]his definition [of ‘public entity’] is intended to include every kind of *independent* political governmental entity in the State.’” (*Vann v. City and County of San Francisco* (2023) 97 Cal.App.5th 1013, 1023.) The *Vann* court went on to state that “if an entity is not independent, it is not properly named as a defendant.” (*Id.* at p. 1024.) “If an entity is a subsidiary, an action must be filed against the parent entity.” (*Ibid.*) “Factors that may be considered in determining if an entity is independent include whether there is ‘[a]n express statutory declaration that [the] entity is a body corporate and politic’; whether the entity has ‘[a] governing body separate from that of the city,

county, or district'; or whether it has '[s]tatutory power to own property, levy taxes, or incur indebtedness in its own name.'" (*Vann v. City and County of San Francisco* (2023) 97 Cal.App.5th 1013, 1025.)

After reviewing "the City Charter, City municipal codes, and other legislative materials," much of which was judicially noticed, the Court in *Vann* concluded that the relevant agency at issue therein did *not* have a separate existence apart from the City. (*Vann v. City and County of San Francisco* (2023) 97 Cal.App.5th 1013, 1017, at fn. 2, and 1025.)

Based on the above, contrary to the speculation and conclusion in *Shaw,* California Courts continue to apply a sovereignty/ independence test, for purposes of Government Code section 811.2.

Within its Reply, Defendant cites *Lejins v. City of Long Beach* (2021) 72 Cal.App.5th 303, wherein the Court noted that the City's Water Department "is not a legal entity separate from the City…." (*Id.* at p. 309.) While Defendant *suggests* the above supports finding the SAPD is *not* separate from the City of Santa Ana, the statement in *Lejin* followed a reference to the Long Beach City Charter. (*Ibid.*)

As the Court in *Lejins* noted, "[t]he City is governed by the Long Beach City Charter (Charter), which created its Water Department at article XIV, section 1400 et seq. of the Charter." (*Lejins v. City of Long Beach* (2021) 72 Cal.App.5th 303, 309.) The Court in *Lejins* briefly summarized portions of the Charter, as follows: "The Water Department is managed by a five-member Board of Water Commissioners (the Board)…One of the Board's powers as provided in the Charter, is to fix rates charged for water and sewer services. The rates ultimately must be approved by the City Council." (*Ibid.*) Pursuant to the Charter, monies collected by the Water Department were held within City funds. (*Ibid.*)

Based on the above, the relevant city charter in *Leijins* included information which indicated the Water Department did not operate independently from the City.

Here, as Defendant has offered no judicially noticeable materials which assist in the analysis discussed in *Vann*, or which indicate the Santa Ana Police Department lacks independence from the City of Santa Ana, this portion of the Demurrer is OVERRULED.

In making this order, the Court is *not* finding that the Santa Ana Police Department is an independent "public entity," capable of being sued pursuant to Government Code section 945 and, instead, is merely

		finding that insufficient information has been provided, to allow a determination at this time. The parties are encouraged to engage in the relevant analysis articulated in *Vann v. City and County of San Francisco* (2023) 97 Cal.App.5th 1013 and to meet and confer, prior to raising the issue again. **<u>Government Liability</u>** Next, Defendant the City of Santa Ana demurs to the Complaint, on the basis that Plaintiff fails to identify a statutory basis for the City's liability. Pursuant to Government Code section 815, "[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code, § 815, subd. (a).) Based on the above, "there is no such thing as common law tort liability for public entities; a public entity is not liable for an injury '[e]xcept as otherwise provided by statute.'" (*Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, 803.) "[I]n California all government tort liability is dependent on the existence of an authorizing statute or 'enactment'….and to state a cause of action every element essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Searcy v. Hemet Unified School District* (1986) 177 Cal.App.3d 792, 802.) "Since the duty of a government agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Ibid.;* See also *Agustin v. Golden Empire Transit Dist.* (2025) 116 Cal.App.5th 426, 441.) Here, Defendant correctly notes that Plaintiff has failed to identify the relevant statutory basis for liability and, consequently, the demurrer brought by the City is sustained; however, leave to amend is granted. Consistent with the above, the Court takes judicial notice that the City of Santa Ana is a public entity. This request is supported by the allegations in the Complaint (¶5(b)(4) of Complaint) and Government Code section 811.2. Defendants' request that the Court take judicial notice of the fact Defendant the Santa Ana Police Department is a non-jural entity is

		denied, on the basis Defendants failed to "[f]urnishes the court with sufficient information to enable it to take judicial notice of the matter." (Evid. Code, § 453, subd. (b).) Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling. Defendants to give notice.
5	Cemex Construction Materials Pacific, LLC vs. Gunner Concrete, Inc.	**TENTATIVE RULING:** **<u>Motion for Leave to File Cross-Complaint</u>** Defendants Douglas Scott Milne, II, and Geneva Milne move for leave to file a Cross-Complaint against Plaintiff Cemex Construction Materials Pacific, LLC. For the following reasons, the motion is GRANTED. The Milnes shall file the proposed Cross-Complaint within 7 days of this ruling. Code Civ. Proc. § 428.10 provides that a party may file a cross-complaint setting forth: "[a]ny cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." There are two types of cross-complaints: compulsory cross-complaints and permissive cross-complaints. A compulsory cross-complaint is a cross-complaint that is asserted against the plaintiff and related to the subject matter of the complaint. (Code Civ. Proc. § 426.30.) A cross-complaint is "related" to the complaint if it arises out of the same transaction, occurrence, or series of transactions or occurrences as the complaint. (Code Civ. Proc. § 426.10(c).) All other cross-complaints are permissive cross-complaints. A liberal construction is given to the application of the compulsory cross-complaint statute. (*Align Technology, Inc. v. Bao Tran* (2009) 179 Cal.App.4th 949, 967.) "The test requires not an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them". The key question is "are any factual or legal issues relevant to both claims?" The goal is to avoid duplication of time and effort that comes from separate suits on the

same events. (*Currie Medical Specialties, Inc. v. Bowen* (1982) 136 Cal.App.3d 774, 777.)

Here, the proposed Cross-Complaint asserts causes of action for 1) public disclosure of private facts, 2) violation of the California Consumer Privacy Act, and 3) improper public disclosure of social security numbers. The Complaint alleged that Gunner Concrete, Inc. breached a Credit Application and Agreement and the Milnes breached the related personal guaranty. The Court granted Cemex's summary judgment motion on May 13, 2026. (ROA 434.) The Proposed Cross-Complaint alleges Cemex wrongfully attached to its Complaint an unredacted copy of the Credit Application that contained the Milnes' personal information, including their social security number.

If the proposed cross-complaint is permissive, leave of court may be granted "in the interests of justice" at any time during the course of the action. (Code Civ. Proc. § 428.50(c).) On the other hand, if the proposed cross-complaint is compulsory, leave *must* be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50.)

Here, the cross-complaint appears to be permissive. The claims in the Cross-Complaint relate to the conduct of Cemex and its counsel in this matter in filing an unredacted document containing the Milnes' personal information. These claims are not "related" to the Complaint and they do not arise out of the same transaction, occurrence, or series of transactions or occurrences as the Complaint – i.e., the Credit Application and Agreement and the personal guarantee.

Further, there is some evidence that the Milnes have delayed in bringing their proposed Cross-Complaint. Cemex's Complaint containing the allegedly offending material was filed on January 17, 2024, over two years before the Milnes filed this motion on March 3, 2026. However, Geneva Milne states in her declaration that she became aware of identity theft and fraudulent activity from her credit card company in August 2025.

Rather than have the Milnes file a separate lawsuit to assert the claims in the Cross-Complaint, the Court exercises its discretion to have this Court adjudicate those claims because the Court is already familiar with the facts and procedural history of this matter.

Finally, while Cemex contends that the Proposed Cross-Complaint is futile, "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."

		(*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280.) At this stage, the Court will not address the merits of a potential Anti-SLAPP motion to strike the Proposed Cross-Complaint. The Milnes shall give notice of this ruling.
6	Colligan vs. So-Cal Boys Restaurant Group Inc.	**TENTATIVE RULING:** **<u>Motion for Stay</u>** Defendant Viking Security Services, Inc. moves to stay this action pending the interpleader and declaratory relief action filed by Defendant's insurer. For the following reasons, the motion is DENIED. The Court notes that Defendant caused the motion to be served by email. However, the proof of service is defective because it does not state the sender's email address. (Code Civ. Proc., § 1013b(b)(1).) Further, on August 16, 2025, Plaintiff's counsel filed a Notice of Change of Firm Address, indicating that Plaintiff's counsel's email address is chris@gansen.law. (ROA 166.) Defendant did not serve Plaintiff's counsel at that email address. Instead, moving counsel served Plaintiff's counsel at chris@gansenlawgroup.com. The motion is also denied on the merits. "[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice." (*People v. Bell* (1984) 159 Cal.App.3d 323, 329; *Landis v. North American Co*. (1936) 299 U.S. 248, 254 ("[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.").) The Court "may, with propriety, find it is efficient for its own docket and the fairest course for the parties to enter a stay of an action before it, pending resolution of independent proceedings which bear upon the case." (*Leyva v. Certified Grocers of Cal. Ltd*. (9th Cir. 1979) 593 F.2d 857, 863, citing *Kerotest Manufacturing Co. v. C–O–Two Fire Equipment Co*. (1952) 342 U.S. 180 ("the court may order a stay of the action pursuant to its power to control its docket and calendar and to provide for a just determination of the cases pending before it").) Where such a stay is considered, the court need not find that the two cases present identical issues; instead, a finding that the cases present

		substantially similar issues is sufficient. (See *Landis, supra*, 299 U.S. at 254.) Criteria for the court to consider include: (1) potential prejudice to the nonmoving party; (2) hardship and inequity to the moving party if the action is not stayed; and (3) the judicial resources that would be saved by avoiding duplicative litigation if the cases are in fact consolidated. (*Rivers v. Walt Disney Co.* (C.D. Cal. 1997) 980 F. Supp. 1358, 1360.) On August 28, 2025, Defendant's insurer, Scottsdale Insurance Company, filed an interpleader and declaratory relief action in the Central District of California ("Interpleader Action"). (Rasmussen Dec., ¶ 5 and Ex. A.) The Interpleader Action concerns three pending lawsuits: *DelGreco v. Viking Security Services, Inc*., et al., (OCSC Case No. 30-2024-01400773-CU-PO-CJC; *Stump v. Viking Security Services, Inc, et al*., (OCSC Case No. 30-2023-01326370-CU-PO-CJC; and this action (the "Underlying Actions"). (Id. at ¶ 6.) Scottsdale alleges it issued to Viking an insurance policy that contained an Assault and/or Battery Limited Liability Coverage endorsement. (Rasmussen Dec., ¶ 7.) The defendants in the Interpleader claim that the Policy provides up to $1 million in limits of liability for the Underlying Actions. (Ibid.) Scottsdale disputes this position due to the $100,000 Each Event, $200,000 Aggregate Limits of Liability in the A&B Coverage Form. (Ibid.) Trial in the Interpleader Action is set for December 8, 2026. (Id. at ¶ 9.) Defendant contends it does not have assets sufficient to fund resolution of this matter or satisfy a judgment outside of its insurance. (Rasmussen Dec., ¶ 10.) A judgment against Viking in this matter would likely result in an uncollectable judgment and/or bankruptcy. (Ibid.) The issues to be tried in this case are different from those to be tried in the Interpleader Action. Here, Plaintiffs assert claims for assault and battery, among others, alleging that Plaintiff David Colligan was attacked by a security guard who worked for Defendants. Defendants' liability for these claims would not affect the existence or amount of insurance coverage for this incident. Defendants have not shown that there is a risk of inconsistent rulings. This case has been pending for three years and Defendants have not shown that a stay would promote judicial efficiency. Defendants have also not provided sufficient evidence that they would suffer inequity if the action is not stayed.

		Defendants Jordan Frank and Heroes Restaurant, Inc. dba Roscoe's Famous Deli, and specially appearing Defendants James Frank and Jeff Hayden filed a Joinder on June 24, 2026. The Joiner is untimely because it was filed less than 16 court days before the July 8, 2026, hearing. (See Code Civ. Proc. § 1005.) The Joinder is denied. Moving Defendants shall give notice of this ruling.
7	Kimes vs. Rich	**TENTATIVE RULING:** For the reasons set forth below, Plaintiff Conrad Phillip Kimes' motion for leave to file Opposition and to reconsider and vacate orders granting Defendants' motion in limine nos. 1, 2 and 4 is DENIED as moot. **<u>Relevant Case History</u>** This matter was initially scheduled for trial on 2/9/26. On 02/04/26, Plaintiff filed a notice of Substitution of Attorney. (ROA no. 334.) Plaintiff is now representing himself. (Id.) On 2/5/26, Defendants Rayco Construction Enterprises, Inc., T.S.G. Independent Property Management, Inc., Beacon Hill Terrace Condominium Homeowners Association, Rich Carrol and Design Build Associates, LLC filed their motions in limine, including the motions in limine at issue here: nos. 1, 2, and 4. (See ROA nos. 356, 353, 352, 354, and 355). On 2/6/26, the court continued the pretrial conference, and the trial, to 6/18/26. The court noted in its order that "Court and counsel hold discussions regarding plaintiff representation, witness list, estimated time of trial and bifurcation." (ROA 361). The Order does not set forth any decision on the motions in limine. On 2/17/26, the Plaintiff filed the instant motion for leave to file an opposition to motions in limine nos. 1, 2, and 4 and to reconsider and vacate orders granting Defendants' motions in limine. On 6/15/26, Plaintiff filed an opposition to Defendants' motions in limine, nos. 1 through 7. (ROA 419). On 6/18/26, Plaintiff made a verbal request for a continuance, and the court granted the request with no objection from Defendant. The trial was continued to 11/2/26. The pretrial conference was continued to

		10/30/26. (ROA 436). Pursuant to the continuances, the motions in limine have not yet been decided by this Court. **Plaintiff's Motion** Plaintiff argues that he became self-represented and did not have a meaningful opportunity to review or prepare a response prior to review or oppose the motions prior to the Court's rulings. The Civil Rules of the Local Rules of the Superior Court of Orange County set forth the following rules for motions in limine: Rule 317, subd. (A): > An Issue Conference is required in all cases at least 14 days before the date set for trial, at which time the parties must meet and confer and exchange and/or sign as applicable the documents listed below. Plaintiff/Petitioner must arrange the Issue Conference at a mutually agreeable time and location. > At the Issue Conference the parties must: … > 6. Exchange all motions in limine. … > The above items, including the Statement of Compliance signed by all counsel and self- represented parties, must be filed no later than noon of the Wednesday before trial. > At the discretion of the assigned judicial officer, a Pre-Trial Conference may be scheduled in lieu of or in addition to the Issue Conference. Rule 317, subd. (B) provides: > By noon on the Wednesday before trial, the parties must deliver to the clerk in the trial department, for the Court, a tabbed three-ring Joint Trial Notebook that contains all of the following items, if applicable. Separate notebooks must be used if any notebook will be more than 3" thick. The Trial Notebook is a courtesy copy for the Court's use and does not relieve the parties of their obligation to electronically file all trial-related documents. …

		12. Any motions in limine exchanged at the issue conference, along with all then-filed oppositions and replies thereto. As stated above, Plaintiff has filed an Opposition to the motions in limine that are the subject of this motion (motion nos. 1, 2 and 4) in preparation of the 6/18/26 trial date. And trial was again continued to 11/2/26, which provides Plaintiff another opportunity to submit Oppositions to the motions in limine in compliance with Local Rule 317. Accordingly, Plaintiff's request for leave to file an Opposition to the motions in limine is now moot. Defendants shall give notice.
8	Magnolia Educational & Research Foundation vs. Irvine Unified School District	**TENTATIVE RULING:** For the reasons set forth below, Petitioner Magnolia Research & Educational Foundation's Petition for Writ of Mandate is DENIED. **<u>Evidentiary Objections</u>** Respondent's Objection Nos. 1-16 to the Declaration of Suat Acar are OVERRULED. "It is settled law that where evidence is in part admissible, and in part inadmissible, the objectionable portion cannot be reached by a general objection to the entire [evidence], but the inadmissible portion must be specified." (*People v. Harris* (1978) 85 Cal.App.3d 954, 957; see also *Walls v. Macy's* (1964) 226 Cal.App.2d 29, 30.) Petitioner's Objection No. 1 to the Declaration of Brenda Recino is OVERRULED; Objection Nos. 2-3 are SUSTAINED (for lack of foundation and personal knowledge). Petitioner's Objection Nos. 1-2 to the Declaration of John Fogarty are OVERRULED. **<u>Background</u>** Petitioner Magnolia Research & Educational Foundation (the "School") operates a network of eleven charter schools in Southern California, including Magnolia Science Academy–Orange County, a countywide charter school approved by the Orange County Board of Education to serve K-12 students throughout Orange County. (Petition ¶ 6.)

		Respondent Irvine Unified School District (the "District") is a public school district serving approximately 38,000 students across 43 school sites in Irvine. (Petition ¶ 7.) The School contends the District violated Proposition 39 ("Prop 39") by denying it access to public school facilities for the 2026-27 school year despite its timely facilities request. (Petition ¶¶ 1-5.) The School alleges it submitted a Prop 39 request projecting 230 in-district students, or 218.5 in-district average daily attendance ("ADA"), supported by signed meaningful-interest statements from 150 students residing within District boundaries and a methodology explaining its enrollment projection. (Petition ¶¶ 25-27.) On November 25, 2025, the District rejected the School's projection and counter-projected that only six in-district students, or 5.7 ADA, would enroll. (Petition ¶ 28.) The School alleges the District improperly disregarded all 150 meaningful-interest statements based on a different school site's low enrollment, alleged defects in 10 forms, and disagreement with the School's methodology. (Petition ¶ 29.) Because the District's counter-projection fell below the 80-ADA threshold, the District denied the School any Prop 39 facilities. (Petition ¶ 29.) The School thereafter responded to the District's objections and reaffirmed its 218.5 ADA projection. (Petition ¶¶ 30-31; Acar Decl., Ex. 3.) The District then issued a further response on January 30, 2026, maintaining its position that the School had not submitted a reasonable ADA projection. (Acar Decl., Ex. 4.) The School alleges the District refused to issue an actual preliminary proposal identifying facilities, locations, conditions, or a proposed agreement. (Petition ¶ 32.) The School submitted another response on February 26, 2026, and the District issued its final response on March 31, 2026, again confirming that it would not make any facilities offer. (Petition ¶¶ 35-38; Acar Decl., Exs. 5, 10.) The School seeks a writ of mandate compelling the District to comply with Prop 39 by issuing a legally compliant facilities proposal based on the School's projected 218.5 in-district ADA. (Petition ¶¶ 40-45; Prayer ¶ 1.) The School also seeks continuing jurisdiction to ensure compliance and costs and attorneys' fees. (Prayer ¶¶ 2-4.) **<u>Relevant Law</u>** "A writ of mandate may be issued by any court to any inferior

		tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person." (Code Civ. Proc., § 1085, subd. (a).) "'The availability of writ relief to compel a public agency to perform an act prescribed by law has long been recognized. [Citation.] [¶] What is required to obtain writ relief is a showing by a petitioner of "(1) A clear, present and usually ministerial duty on the part of the respondent ...; and (2) a clear, present and beneficial right in the petitioner to the performance of that duty...." [Citations.]' [Citations.] Courts have defined a ministerial act as ' "an act that a public officer is required to perform in a prescribed manner in obedience to the mandate of legal authority and without regard to his own judgment or opinion concerning such act's propriety or impropriety, when a given state of facts exists." [Citation.]' [Citation.] 'Thus, "[w]here a statute or ordinance clearly defines the specific duties or course of conduct that a governing body must take, that course of conduct becomes mandatory and eliminates any element of discretion." [Citation.]'" (*Bullis Charter School v. Los Altos School Dist*. (2011) 200 Cal.App.4th 1022, 1035 (*Bullis*).) "Courts have recognized implicitly the right to enforce through traditional mandamus proceedings a school district's obligations under Proposition 39. For instance, in *Sequoia Union High School Dist. v. Aurora Charter High School* (2003) 112 Cal.App.4th 185, 195 (*Sequoia*), the court found mandamus relief appropriate in order for a charter school to compel a school district to provide it with 'reasonably equivalent' facilities as required under section 47614, subdivision (b)." (*Bullis, supra,* 200 Cal.App.4th at p. 1036.) "Courts exercise limited review in ordinary mandamus proceedings. They may not reweigh the evidence or substitute their judgment for that of the agency. They uphold an agency action unless it is arbitrary, capricious, lacking in evidentiary support, or was made without due regard for the petitioner's rights. [Citations.] However, courts must ensure that an agency has adequately considered all relevant factors, and has demonstrated a rational connection between those factors, the choice made, and the purposes of the enabling statute. [Citation.] Because trial and appellate courts perform the same function in mandamus actions, an appellate court reviews the agency's action de novo. [Citation.]" (*Sequoia*, *supra*, 112 Cal.App.4th at p. 195.)

		"Generally, mandamus may be used only to compel the performance of a duty that is purely ministerial in character. [Citation.] The remedy may not be invoked to control an exercise of discretion, i.e., to compel an official to exercise discretion in a particular way." (*Ridgecrest Charter School v. Sierra Sands Unified School Dist.* (2005) 130 Cal.App.4th 986, 1002.) However, a school district is obligated to follow the law and to provide a charter school with facilities that are "reasonably equivalent" and, where applicable, "contiguous," even if the manner of allocating facilities is largely committed to the school district's discretion. (*Id*. at p. 1003.) A school district is not required to accept a charter school's ADA projection merely because the charter school submits a facilities request. (*Environmental Charter High School v. Centinela Valley Union High School Dist*. (2004) 122 Cal.App.4th 139, 151-153.) A district may deny a facilities request where the charter school fails to provide documentation sufficient to establish a reasonable foundation for its projection. (*Ibid*.) Although the charter school's showing need not be arithmetically precise, it must be reasonable in the sense that it has some basis in logic, reason, and experience. (*Id*. at p. 153.) When a court issues a writ requiring a district to comply with Proposition 39, the court may require the district to file a return demonstrating compliance. (*Los Angeles Internat. Charter High School v. Los Angeles Unified School Dist*. (2012) 209 Cal.App.4th 1348, 1355.) A return should state that the respondent has satisfied the writ in full compliance and should set out the actions taken to meet the writ's terms. (*Ibid*.) "In November 2000, [Education Code] section 47614 was amended when the voters approved Proposition 39. (Prop. 39, § 6, as approved by voters, Gen. Elec. (Nov. 8, 2000).)" (*Sequoia, supra*, 112 Cal.App.4th at p. 189.) As amended, section 47614 states the voters' intent that public school facilities should be shared fairly among all public school pupils, including those in charter schools. (Ed. Code, § 47614, subd. (a).) To implement that intent, section 47614 provides that "[e]ach school district shall make available, to each charter school operating in the school district, facilities sufficient for the charter school to accommodate all of the charter school's in-district students in conditions reasonably equivalent to those in which the students would be accommodated if they were attending other public schools of the district." (Id., subd. (b).) Each year, each charter school desiring facilities from a school district in which it is operating shall provide the school district with a reasonable projection of the charter school's average daily classroom attendance

by in-district students for the following year, and the district shall allocate facilities to the charter school for that following year based upon this projection. (Id., subd. (b)(2).) Facilities requests based upon projections of fewer than 80 units of average daily classroom attendance for the year may be denied by the school district. (Id., subd. (b)(4).)

To receive facilities during a particular fiscal year, a charter school must submit a written facilities request to the school district on or before November 1 of the preceding fiscal year. (Cal. Code Regs., tit. 5, § 11969.9, subd. (b).) A charter school must be operating in the school district as defined in Education Code section 47614 before it submits a request for facilities. (Id., subd. (a).) A new or proposed new charter school is operating within the school district and, therefore, eligible to request facilities for a particular fiscal year only if it submitted its charter petition pursuant to Education Code sections 47605, 47605.5, 47605.6, or 47605.8 on or before November 1 of the fiscal year preceding the year for which facilities are requested; a new charter school is entitled to be allocated and/or provided access to facilities only if it receives approval of the petition before March 15 of the fiscal year preceding the year for which facilities are requested. (Ibid.)

The written facilities request consists of reasonable projections of in-district and total ADA and in-district and total classroom ADA, based on ADA claimed for apportionment, if any, in the fiscal year prior to the fiscal year in which the facilities request is made, adjusted for expected changes in enrollment in the forthcoming fiscal year; a description of the methodology for the projections; the charter school's operational calendar; information regarding the district school site and/or general geographic area in which the charter school wishes to locate; and information on the charter school's educational program, if any, that is relevant to assignment of facilities. (Cal. Code Regs., tit. 5, § 11969.9, subd. (c)(1)(A), (B), (D)-(F).) If relevant (i.e., when a charter school is not yet open or to the extent an operating charter school projects a substantial increase in in-district ADA), the written facilities request must also include documentation of the number of in-district students meaningfully interested in attending the charter school that is sufficient for the district to determine the reasonableness of the projection, but that need not be verifiable for precise arithmetical accuracy. (Id., subd. (c)(1)(C).) The projections of in-district ADA, in-district classroom ADA, and the number of in-district students shall be broken down by grade level and by the school in the school district that the student would otherwise attend. (Id., subd. (c)(2).)

The school district shall review the charter school's projections of in-district and total ADA and in-district and total classroom ADA and, on or before December 1, express any objections in writing and state the projections the district considers reasonable. (Cal. Code Regs., tit. 5, § 11969.9, subd. (d).) If the school district does not express objections in writing and state its own projections by the deadline, the charter school's projections are no longer subject to challenge and the school district shall base its offer of facilities on those projections. (Ibid.) On or before January 2, the charter school shall respond to any objections expressed by the school district and to the district's projections provided pursuant to subdivision (d). The charter school shall reaffirm or modify its previous projections as necessary to respond to the information received from the district pursuant to subdivision (d). If the charter school does not respond by the deadline, the district's projections provided pursuant to subdivision (d) are no longer subject to challenge and the school district shall base its offer of facilities on those projections. (Id., subd. (e).)

On or before February 1, the school district shall prepare in writing a preliminary proposal regarding the space to be allocated to the charter school and/or to which the charter school is to be provided access. (Cal. Code Regs., tit. 5, § 11969.9, subd. (f).) On or before March 1, the charter school shall respond in writing to the school district's preliminary proposal made pursuant to subdivision (f), expressing any concerns, addressing differences between the preliminary proposal and the charter school's facilities request as submitted pursuant to subdivision (b), and/or making counter proposals. (Id., subd. (g).) On or before April 1, having reviewed any concerns and/or counter proposals made by the charter school pursuant to subdivision (g), the school district shall submit in writing a final notification of the space offered to the charter school. The notification shall include a response to the charter school's concerns and/or counter proposals (if any). (Id., subd. (h).)

Analysis

The School submitted a Prop 39 request projecting 230 in-district students, resulting in 218.5 in-district ADA, which it asserted was supported by signed meaningful-interest statements from 150 in-district students and a methodology explaining how it calculated its projection. (Petition ¶¶ 25-27; Acar Decl. ¶¶ 10-11, Ex. 1.) The District rejected the School's 218.5 ADA projection and counter-projected that only six in-district students, or 5.7 ADA, would enroll. (Petition ¶¶ 28-29; Acar Decl. ¶ 12, Ex. 2.)

The School seeks a writ of mandate on the grounds that the District failed to perform its ministerial duty to allocate facilities and applied erroneous legal standards in rejecting the School's request. Specifically, the School alleges the District disregarded all 150 meaningful-interest statements based on a different school's low enrollment, alleged defects in 10 forms, and disagreement with the School's methodology. (Petition ¶ 29.)

The District, in opposition, contends its actions were not arbitrary or capricious, were supported by evidence in the record, and complied with the regulatory process. The District further contends it did not have a ministerial duty to accept the School's projection, but instead had discretion to evaluate whether the School submitted a reasonable ADA projection supported by sufficient documentation. The District also contends that, because its counter-projection fell below 80 units of average daily classroom attendance, it was permitted to deny the request without issuing a facilities offer.

In reply, the School contends it submitted 150 signed meaningful-interest statements, provided a methodology, and received no preliminary proposal or final facilities offer. The School argues the District imposed a level of arithmetical certainty that Prop 39 does not require and relied on one prior school's enrollment outcome to reject the School's meaningful-interest documentation.

The record shows that the District rejected the School's ADA projection and provided its own below-80 ADA counter-projection, explaining in pertinent part as follows:

- The District relied in part on enrollment data from the School's other countywide campuses, stating that the Anaheim and Placentia-Yorba Linda campuses had a combined enrollment of only 83 students, contrary to the School's claim that its recruitment efforts had consistently resulted in full enrollment at newly launched campuses. (Acar Decl., Ex. 2 [Letter p. 3])
- The School used essentially the same methodology in its prior Placentia Yorba Linda Unified School District ("PYLUSD") Prop 39 request, where it projected 206.8 ADA based on 143 interest forms but enrolled only five students. (Id. [Letter p. 4].)
- The District identified alleged deficiencies in the meaningful-interest ("MIF") forms, including unconfirmed addresses and birthdate issues. The District stated that the School claimed to have submitted 150 in-district MIF forms, but the District found that the School submitted 141 forms, of which 10 were

		not valid expressions of meaningful interest, resulting in 131 in-district MIF forms. The District also stated that the School failed to explain how the forms supported the specific projection of 230 in-district students, and instead relied on the existence of the forms without tying them to a reliable projection methodology. (Id. [Letter pp. 5, 10-12].) • The District also objected to the School's grade-level and school-in-the-district projections, stating that the School did not explain how it projected grade-level enrollment or the District schools students would otherwise attend. For example, the District stated that the School had nine in-district forms from projected first-grade students but projected 20 first-grade students, and eight in-district forms from projected second-grade students but projected 21 second-grade students, without explaining how it reached those figures. (Id. [Letter pp. 14-15].) • The District applied the PYLUSD enrollment result of 2.3 percent of projected enrollment to the School's projected 230 in-district students, resulting in a projected enrollment of six students and 5.7 in-district ADA after applying the School's 95 percent ADA rate. (Id. [Letter pp. 15-16].) As noted above, Prop 39 does not require a school district to accept a charter school's ADA projection merely because the charter school submits meaningful-interest forms. Rather, the charter school must provide a reasonable projection supported by sufficient documentation, and the school district may timely object and state the projection it considers reasonable. (Ed. Code, § 47614, subd. (b)(2); Cal. Code Regs., tit. 5, § 11969.9, subd. (d).) Thus, the District was permitted to scrutinize the School's request and was not required to accept the 218.5 ADA projection automatically. Nor was the District required to issue a preliminary proposal or final facilities notification if it properly determined that the request was based on fewer than 80 units of average daily classroom attendance. The record demonstrates the District had a reasonable basis to reject the School's 218.5 ADA projection. The District identified record-based concerns regarding the School's reliance on claimed historical enrollment success, the poor enrollment outcome at PYLUSD, alleged defects in some meaningful-interest forms, the lack of a clear bridge between the forms and the 230-student projection, and unexplained grade-level and school-in-the district allocations. These concerns are sufficient to show the District did not act arbitrarily by declining to accept the School's requested 218.5 ADA figure.

		For the foregoing reasons, the petition is **DENIED**. Respondent to give notice.
9	Vega vs. General Motors LLC	**TENTATIVE RULING:** For the reasons set forth below, Plaintiff Angelica Vega's motion for attorney's fees, costs, and expenses is GRANTED in part and DENIED in part. The court awards Plaintiffs a total fees, costs, and expenses award of $6,336.26, consisting of $5,757.50 in attorney fees plus $578.76 in costs. **<u>Standard on Motions for Attorney's Fees</u>** On a motion for attorney's fees, the moving party has the burden of: (1) establishing entitlement to an award, and (2) documenting the appropriate hours expended and hourly rates. (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1020.) The Song-Beverly Act provides for the recovery of attorney's fees, costs, and expenses. (Civ. Code, § 1794(d).) Courts use the lodestar adjustment method to determine the amount of attorney's fees to award in Song-Beverly actions. (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1112.) "[T]he lodestar is the basic fee for comparable legal services in the community." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) It is "based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case.' [Citation.] [The California Supreme Court] expressly approved the use of prevailing hourly rates as a basis for the lodestar… In referring to 'reasonable' compensation, [the Court] indicated that trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation. (*Id.* at 1131-1132.) When determining a reasonable attorneys' fees award using the lodestar method, the court begins by deciding the reasonable hours the prevailing party's attorney spent on the case and multiplies that number by the reasonable hourly compensation of each attorney. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998; *see also Environmental Protection Info. Ctr. v. California Dep't of Forestry & Fire Protection* (2010) 190 Cal.App.4th 217, 248.) "The reasonable hourly rate is that prevailing in the community for similar

work." (*PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095*.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 437.)

The court then has the discretion to increase or decrease the lodestar figure by applying a positive or negative multiplier; "such an adjustment is commonly referred to as a 'fee enhancement' or 'multiplier.' [Citation.]" (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247 ("Mikhaeilpoor").) The lodestar may be adjusted based on factors which include the novelty and difficulty of issues presented, complexity of the case, the attorney's skills, the results achieved, and the extent to which taking the case on a contingent fee basis has precluded the attorney from taking other fee-generating work. (*Ketchum*, 24 Cal.4th at 1132-1134; *Mikhaeilpoor*, 48 Cal.App.5th at 247.) "The purpose of [the] adjustment is to fix a fee at the fair market value for the particular action. In effect, the court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services." (*Ketchum*, 24 Cal.4th at 1132.)

The court is not required to impose a multiplier; the decision is discretionary. (Mikhaeilpoor, 48 Cal.App.5th at 247; Galbiso, 167 Cal.App.4th at 1089; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1241.)

"'[T]he lodestar method vests the trial court with the discretion to decide which of the hours expended by the attorneys were "reasonably spent" on the litigation' [Citation] and to determine the hourly rates that should be used in the lodestar calculus. [Citation.]" (*Mikhaeilpoor*, 48 Cal.App.5th at 246-247.) "The experienced trial judge is the best judge of the value of professional services rendered in his court . . . . [Citation.]" (*Ketchum*, 24 Cal.4th at 1132.)

1. **<u>Entitlement to Fees</u>**

Here, it is undisputed Plaintiff is the prevailing party over Defendant GM and that Plaintiff is entitled to recover attorney's fees pursuant to the Song-Beverly Consumer Warranty Act.

2. **<u>Lodestar Calculation</u>**

Plaintiff submits time records detailing the work performed, amount of time billed, date, and timekeeper. The records show 24.9 hours of attorney work totaling $11,318.00 in attorney's fees. (Geoulla Decl. ¶ 39, Ex. 2.)

Timekeeper (bar admission)	**Billing Rate**	**Hours Billed**
Attorney Geoulla (2022)	$450	16.9
Attorney Youabian (2021)	$495	6.9
Attorney Josephson (2025)	$350	0.3
Legal Asst. Castellanos	$125	0.1
Legal Asst. Alvarado	$150	0.7

a. <u>Reasonable Rates</u>

"The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal. App. 5th 426, 437.)

Plaintiff's counsel billed at the following rates:

Timekeeper (bar admission)	**Billing Rate**	**Rec'd Rate**
Attorney Geoulla (2022)	$450	$350
Attorney Youabian (2021)	$495	$350
Attorney Josephson (2025)	$350	$250
Legal Asst. Castellanos	$125	
Legal Asst. Alvarado	$150	

The court finds that the rates charged appear on the higher side of the market for this type of litigation. Attorney Josephson has been practicing less than one year, and the most senior attorney Youabian less than five years. For this reason, the court reduces the reasonable rate of fees as follows:

Timekeeper (bar admission)	**Rate**
Attorney Geoulla (2022)	$350
Attorney Youabian (2021)	$350
Attorney Josephson (2025)	$250
Legal Asst. Castellanos	$125
Legal Asst. Alvarado	$150

These reduced rates reflect the reasonable market rate for an attorney with similar experience for similar work.

b. Reasonable Hours

The parties exchanged initial disclosures, propounded no formal discovery beyond those disclosures and took no depositions. (Kay Decl. ¶¶ 6-7.)

On 06/17/2025, the parties reached an agreement for GM to repurchase the vehicle for $42K plus fees and costs.

Defendant challenges several billing entries, including:

- Pre-engagement work: 2.5 hours billed ($1,237.50) before Plaintiff retained counsel. The court will reduce 1.5 hours billed by Attorney Youabian.

- Client intake and prelitigation: 1.6 hours billed by Attorney Youabian and 1.2 hours billed by Attorney Geoulla on initial intake and prelitigation tasks as excessive. The court will reduce 1.2 hours billed by Atty Geoulla.

- Complaint: 0.6 hrs billed by Atty Geoulla ($270) and 0.2 hrs ($99) billed by Youabian to draft the template Complaint as excessive. The court will reduce 0.2 hrs billed by Youabian and 0.2 hrs billed by Atty Geoulla.

- Initial disclosures: 0.6 hrs by Atty Geoulla to discuss initial disclosures and draft, 0.1 hrs ($49.50) by Youabian to review and sign the disclosures. The court will reduce 0.3 hrs billed by atty Geoulla.

- Reviewing GM's initial disclosures: 1.2 hrs ($540) to review initial disclosures, the majority of information which counsel would already have reviewed, given the warranty was in Plaintiff's possession. The court will reduce Atty Geoulla's time by 0.6 hours.

- Client communications: Atty Geoulla billed 6.3 hours ($2835) and 1.0 hours $495) by Atty Youabian to communicate with Plaintiff. The court will reduce Atty Geoulla's time by 3 hours.

- Administrative time: 0.5 hrs ($225) and 0.3 hr ($37.50). The court will reduce 0.5 hrs of Atty Geoulla's time.

- Fees motion: 2.2 hours ($1080) and 0.4 hrs ($198) to draft the fees motion. The court will reduce 0.5 hours of Atty Geoulla's time.

In sum, the court has reduced 1.7 hrs of time billed by Attorney Youabian and 6.3 hours billed by Attorney Geoulla.

Timekeeper (bar admission)	**Hours Billed**	**Hours Allowed by Court**
Attorney Geoulla (2022)	16.9	10.6
Attorney Youabian (2021)	6.9	5.2
Attorney Josephson (2025)	0.3	0.3
Legal Asst. Castellanos	0.1	0.1
Legal Asst. Alvarado	0.7	0.7
TOTAL	**24.9**	**16.9**

The court, therefore, awards Plaintiff $5,757.50 in reasonable attorney's fees, for 16.9 hours of legal services. This amount and these hours appear reasonable for a simple lemon law matter resolved within five months of filing and without formal written discovery outside of initial disclosures.

3. <u>Costs</u>

Plaintiff timely filed its memorandum of costs prior to judgment was entered. (*See* Cal. Rules Ct., Rule 3.1700(a)(1) [providing deadline to file and serve costs memorandum as the earlier of: 15 days after service of notice of entry of judgment, or 180 days after entry of judgment].)

Plaintiff seeks $578.76 in costs. Defendant seeks to tax $70.06 in costs.

The court having reviewed Plaintiff's memorandum of costs finds that the $578.76 that Plaintiff requests is reasonable. Plaintiff shall be awarded $578.76 in costs.

Plaintiff to give notice.

10	Zancanaro vs. Moore	**TENTATIVE RULING:** For the reasons set forth below, the unopposed Motion for Leave to Amend brought by Plaintiff Gina Zancanaro is GRANTED, pursuant to Code of Civil Procedure section 473, subdivision (a). Plaintiff seeks leave to amend, simply to correct the name of Defendant La Palma Woods Apartments, which Plaintiff has been informed is actually "De Anza Plaza Apartments, LLC dba La Palma Woods Apartments." (Motion: 5:14-20 [ROA No. 38]; See also ¶4-¶6 of Sabbagh Declaration.) The above amendment is simple and will not prejudice any party to this action. This is particularly true, given this action remains in its early stages and no Defendant has yet appeared. Additionally, having now submitted a proposed amended pleading which is properly labelled as the second amended complaint, Plaintiff has complied with the requirements of California Rules of Court rule 3.1324(a)(1). (¶9 of Sabbagh Declaration and Exhibit 2 thereto.) Similarly, Plaintiff has identified the changes in the Complaint, the effect of the amendment, and when the facts giving rise to the amended allegations were discovered. (See Cal. Rules of Court rule 3.1324(b) and ¶4-¶7 of Sabbagh Declaration.) As noted above, Plaintiff has changed only the name of Defendant La Palma Woods Apartments, to correctly identify the legal entity doing business there as. (¶4-¶6 of Sabbah Declaration.) The above fully complies with the requirements of California Rules of Court rule 3.1324. "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Ibid.*) Additionally, "[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails." (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.) Based on all the above, the Motion for Leave to Amend is granted. Plaintiff shall separately file her proposed Second Amended Complaint, within 10 days of this order. Plaintiff to give notice.

11	Doan vs. County of Orange	**TENTATIVE RULING:** **<u>Motion to Quash</u>** For the reasons set forth below, Plaintiffs Megan Doan and Jan Tan's motion to quash Defendants' deposition subpoena of counsel Nadine Khedry is GRANTED. **<u>Relevant Discovery History</u>** Defendants previously served Plaintiffs' counsel, Nadine Khedry, with a deposition subpoena on May 28, 2025, concerning the same subject matter. Plaintiffs filed a motion to quash on June 13, 2025. (ROA 115). The motion was heard in Dept. CM02. Judge De La Cruz granted the motion to quash on January 15, 2026, finding that Defendants failed to show that the required information could not have been obtained by other practicable means. (ROA 244). Plaintiffs had also filed a motion for a protective order precluding Defendants from taking the deposition of Plaintiffs' Counsel, which was also heard on 1/15/26 in the same department. The court denied the motion for protective order on the basis that there was no meet and confer by Plaintiffs, as required by Code Civ. Proc. § 2025.420. (See ROA 244). **<u>Legal Authority</u>** Code Civ. Proc. § 1987.1(a) states: "If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." Pursuant to this subdivision, a party may make the motion. "Depositions of opposing counsel are presumptively improper, severely restricted, and require 'extremely' good cause—a high standard." (*Carehouse Convalescent Hosp. v. Superior Ct*. (2006) 143 Cal.App.4th 1558, 1562).

		The court in *Spectra-Physics, Inc. v. Superior Court* (1988) 198 Cal.App.3d 1487 set forth the following when a party seeks to depose opposing counsel: "We recognize that circumstances may arise in which the court should order the taking of opposing counsel's deposition. But those circumstances should be limited to where the party seeking to take the deposition has shown that (1) no other means exist to obtain the information than to depose opposing counsel, [citation]; (2) the information sought is relevant and nonprivileged; and (3) the information is crucial to the preparation of the case." (*Id.* at 1494-1495; see also *Carehouse, supra*, 143 Cal.App.4th at 1563). The proponent of the deposition has the burden of proof to establish the predicate circumstances that no other means exist to obtain the information and that the information is crucial to the preparation of the case, while the party opposing discovery has the burden of establishing the preliminary facts to support any claim of privilege. (*People v. Superior Court (Credit One Bank, N.A.)* (2025) 112 Cal.App.5th 804, 817). **<u>Mertis</u>** Defendants County of Orange and Jeremiah Wayne Peyus served Plaintiffs' counsel, Nadine Khedry, with a deposition subpoena and requested the following category of documents: documents relating to communications between counsel and Rest Your Case Evidence Storage, LLC, the whereabouts of Plaintiffs' Honda HR-V vehicle, documents relating to the removal of the Honda HR-V, and any photographs of the Honda HR-V. (See Decl. of Khedry, ¶ 4, Ex. 2). With regards to the element of privilege, Plaintiffs acknowledge that the facts of how Ms. Khedry handled the vehicle are not privileged. However, Defendants contend in their Opposition that the deposition is necessary "to shed light on why she acted as she did." (Opp., 14:5-6). Any of Ms. Khedry's impressions, conclusions, opinions, and theories are protected pursuant to Code Civ. Proc., § 2018.030, subd. (a). Accordingly, Plaintiffs have established that some, but not all, of the information sought is privileged. With regards to the non-privileged information sought (the handling of the vehicle, the whereabouts of the vehicle, and whether black box or Event Data Recorder information was preserved, and any efforts to preserve), Defendants contend that they have now exhausted all other means to get this information. Since the court granted Plaintiffs' previous motion to quash on January 15, 2026, Defendants

		subpoenaed Allstate and deposed Allstate's person most knowledgeable, James Bally. Defendants contend that the Allstate PMK confirmed it took physical custody of the 2024 Honda HR-V on April 11, 2024, through its vendor CoPart, and claimed no knowledge as to the current whereabouts of the Honda HR-V or its's Event Data Recorder (EDR data), or whether the Honda and it's EDR had been destroyed. However, in support of Plaintiffs' Reply, Plaintiffs include the deposition testimony of Mr. Bally, as well as the deposition testimony of Mr. Vaca, the PMK for CoPart, which establish that counsel put a litigation hold on the vehicle and instructed the vehicle not to be sold. Mr. Bally testified: "But yes, the salvage hold was requested by Panish's attorney. It's in my notes. It's Panish. I don't have my notes as -- Nadine, I believe …my notes stated that they wanted the request for a litigation hold. That's what I put in my notes at the time." (Decl. of Glassman, ¶ 2, Ex. 1 [deposition transcript of Mr. Bally]). Mr. Vaca also testified to the following: A Our CSR followed policy and procedure, Michelle, and she reached out to the adjuster and advised them they have to have put the vehicle on the seller hold via their portal themselves. Q Okay. What does that mean? A That means the seller, in this case Allstate, would have to put the vehicle on hold through their seller portal in our system. Q Did they ever do that? A No, not based on the assignment. (Decl. of Glassman, ¶ 4, Ex. 3 [deposition transcript of Mr. Vaca]). These deposition transcripts establish that Plaintiffs' counsel requested a litigation hold, and that Allstate was required to put the litigation hold in the CoPart portal, but failed to do so. CoPart sold the Honda to All Auto Parts, which scrapped it by May 9, 2024. While Defendants contend that they need to depose Ms. Khedry to determine the whereabouts of the Honda, Defendants state in their motion for sanctions that the Honda was sold for scrap and destroyed by May 9, 2024. (See Motions for Sanctions [ROA 314]). Accordingly, Ms. Khedry's deposition is not necessary to determine why the Honda was scrapped for parts and not preserved.

The remaining issue is whether the EDR data was preserved. However, Defendants have not sufficiently established why Ms. Khedry's deposition is necessary for this information. In their Opposition, Defendants include the special interrogatory responses of Plaintiff Ms. Doan, wherein she was asked to "Describe in detail everything YOU did to preserve the Event Data Recording ('EDR' or 'black box') from the 2024 Honda HR-V for use as evidence at the trial of this matter.", and responded as follows: "Upon information and belief, following the collision the vehicle was stored at the Doan household, following that it was taken to Crash Champions, and following that it was taken to Rest Your Case for evidence preservation. Pursuant to a litigation hold, Allstate took possession of the vehicle from Rest Your Case." (Decl. of Mlynarska, ¶ 13, Ex. 11). Defendants provided other examples of Plaintiffs' written discovery responses wherein Plaintiffs state that the Honda was last in the possession of Allstate pursuant to a litigation hold. (See *Id.*).

Defendants contend that Plaintiffs did not answer written discovery in a straightforward manner as to those preservation efforts. But this does not satisfy the requisite prong that "no other means exist to obtain the information than to depose opposing counsel." (*Spectra-Physics, Inc. supra,* 198 Cal.App.3d at 1494). If Plaintiffs' written responses were deficient, the proper recourse would have been to compel further responses.

In this regard, Defendants contend that "Plaintiffs chose to provide extremely evasive answers throughout, knowing that this Court's impacted Motion calendar would mean that any Motions to Compel would not be set for hearing until after the August 17, 2026, trial." (Opp., 14-17). But there are various problems with this argument. First, it is presumptive. More importantly, however, even if Defendants were unable to get a hearing date before trial, they had other recourse. They could move ex parte to advance the hearing date, or move to continue trial.

Furthermore, Defendants stated in their Motion for Sanctions (heard concurrently with the instant motion) that "to date, and despite extensive discovery efforts, the defense has been unable to obtain the EDR data, and it has been confirmed that this data was never preserved by Plaintiffs." (Motion for Sanctions, 7:9-11; see also Decl. of Mlynarska ISO of Motion for Sanctions at ¶ 15 [emphasis added]). Defendants acknowledge that this question has been answered.

Therefore, the motion is granted.

Monterey Sanctions

Finally, Plaintiffs request monetary sanctions against Defendants' counsel.

Code Civ. Proc. § 1987.2, subd. (a) provides that: "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."

However, Plaintiffs did not request any specific amount in sanctions or set forth any evidence showing the expenses incurred in making the motion. Accordingly, Plaintiffs' request for sanctions is denied.

Motion for Sanctions

For the reasons set forth below, Defendants County of Orange and Deputy Peyus' motion for spoliation sanctions is DENIED.

Separate Statement

As a preliminary matter, Cal. Rules of Court, rule 3.1345(a)(7) requires a separate statement for "issue or evidentiary sanctions." Defendants did not file a separate statement. However, Plaintiffs did not raise this point. Therefore, the court will proceed on the merits.

Authority

Defendants move for terminating sanctions or, alternatively, a comprehensive package of issue, evidentiary, and jury instruction sanctions, on the basis that Plaintiffs failed to preserve the Event Data Recorder ("EDR") of the 2024 Honda HR-V operated by Plaintiff Megan Doan at the time of the December 29, 2023, collision.

Code Civ. Proc. § 2023.030 provides the following:

> To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

		(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses. (c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence. (d) The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that party. …. "A trial court has broad discretion to impose discovery sanctions, but two facts are generally prerequisite to the imposition of nonmonetary sanctions … (1) absent unusual circumstances, there must be a failure to comply with a court order, and (2) the failure must be willful." (*Biles v. Exxon Mobil Corp*. (2004) 124 Cal.App.4th 1315, 1327; see also, *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1423.) Spoliation of evidence "is defined as the destruction or alteration of relevant evidence or the failure to preserve evidence for another party's use in pending or future litigation." (*Victor Valley Union High School District v. Superior Court* (2023) 91 Cal.App.5th 1121, 1139 [citing other cases].) "[T]he party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie

showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense." (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1227 [citing *National Council Against Health Fraud, Inc. v. King Bio Pharmaceuticals, Inc.* (2003) 107 Cal.App.4th 1336, 1346-1347 and cases cited therein].) An adverse jury instruction "may be given only if there is evidence of willful suppression, which one appellate court has described as 'evidence that a party destroyed evidence with the intention of preventing its use in litigation.'" (*Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094, 1129 [citing *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1434]).

Merits

Defendants contend that Plaintiffs' counsel, Robert Glassman and Nadine N. Khedry of Panish Shea Ravipudi LLP, were retained to represent Plaintiffs no later than January 24, 2024, within weeks of the subject collision. On February 7, 2024, Ms. Khedry personally arranged for the Honda HR-V to be transported from a body shop to Rest Your Case Evidence Storage in Irwindale, California, at her firm's expense. On April 9, 2024 — five days after filing suit and two days before Defendants were served — Ms. Khedry authorized the release of the Honda HR-V to Allstate. Following Ms. Khedry's authorization, the Honda HR-V was sold for scrap on April 25, 2024, and entirely destroyed by May 9, 2024. To Defendants' knowledge, the EDR data was never extracted, downloaded, or otherwise preserved by counsel before its ultimate destruction. Defendants' first appearance in this action occurred on May 10, 2024 — one day after the vehicle had already been destroyed.

According to Defendants, Plaintiffs have obtained and analyzed the EDR data from Deputy Peyus's vehicle, which Defendants preserved and produced. Defendants, however, possess no equivalent objective data from the Honda HR-V because Plaintiffs failed to preserve it before authorizing the vehicle's destruction.

Defendants also contend that immediately following the incident, the Santa Ana Police Department requested authority to inspect the 2024 Honda HR-V EDR data from Ms. Tien Doan, the registered owner of the vehicle. (See, Ex. "K," Mlynarska Decl., ¶ 13) [Santa Ana PD Report: "I called Tien the following morning. After careful consideration, she declined to provide the consent to image the EDR of V-2."]).

As to the importance of the subject matter of the evidence, Defendants contend that the issues of whether Plaintiff Doan applied her brakes while positioned in Defendant Deputy Peyus's right of-way and whether she was wearing a seat belt are central issues to this case.

Defendants present the declaration of their expert, Michael Callahan, who declares that the 2024 Honda HR-V was equipped with EDR. (Decl. of Callahan, ¶¶ 5-7). He declares that he has been unable to completely reconstruct the driver inputs and vehicle response in the final five seconds preceding impact of the 2024 Honda HR-V, driven by Ms. Doan; quantify impact severity and crash pulse; valuate seatbelt, airbag, and advanced driver-assist ("ADAS") system performance; and provide reconstruction opinions to a biomechanical engineer to evaluate occupant injury mechanisms. (Decl. of Callahan, ¶ 8). He attaches as Exhibit B a sample of a Honda EDR data elements (from Bosch Crash Data Retrieval software), which provides that the "the CDR report will provide the end user with several data elements which may include": safety belt status, brake system warning indicator status, frontal air bag device deployment status, etc. (Decl. of Callahan, ¶ 9, Ex. B). He also attaches a sample EDR Report from an exemplar Honda HR-V (accessed through CISS – Crash Investigation Sampling System) (Decl. of Callahan, ¶ 9, Ex. C).

Pursuant to these contentions, Defendants have not established that Plaintiffs violated any prior court order, and their motion for terminating and/or evidence and/or issue and/or monetary sanctions is based entirely on the theory of spoliation of evidence.

In that regard, Defendants must make an initial prima facie showing that the *responding party in fact destroyed evidence* that had a substantial probability of damaging the moving party's ability to establish an essential element of his claim or defense. (*Williams, supra,* 167 Cal.App.4th at 1227).

Defendants' evidence establishes the following: Plaintiff Megan Doan responded in written discovery that the 2024 Honda HR-V, and upon information and belief, the vehicle was last in the possession of Allstate Insurance. (Decl. of Mlynarska, ¶ 4, Ex. B). All Auto Park's person most knowledgeable, Jared Milmeister, testified that the Honda HRV was destroyed on May 9, 2024, and was scrapped, he never received a formal notice to preserve the 2024 Honda HR-V, and he never would have destroyed it if he received formal notice. (Decl. of Mlynarska, ¶ 6). In the deposition testimony of Ms. Doan, she testified that she relied on her attorney to handle the Honda, and did not know the whereabouts of the Honda. (Decl. of Mlynarska, ¶ 10, Ex. H). Tien Doan declined to provide consent to image the EDR of the V-2 after the collision. (Decl. of Mlynarska, ¶ 13. Ex. K). Allstate's person most knowledgeable, James Bally, testified that he was not informed that "the vehicle needed to be used as evidence in connection with the civil lawsuit" however, he was informed that there was a litigation hold: "The only information I was provided for me was the litigation hold request. That was it." (Decl. of Mlynarska ¶ 14, Ex. L).

The court finds that Defendants have not established that Plaintiffs willfully suppressed and/or intentionally destroyed the Honda or EDR data. To the contrary, Defendants' evidence establishes that Plaintiffs' counsel requested a litigation hold for the vehicle.

In their Reply, Defendants cite to *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486 in support of their contention that Plaintiffs' attorney acted in conscious disregard of a known duty, which supports the request for sanctions. However, the facts of *R.S. Creative* are not applicable here. In *R.S. Creative*, the sanctioned party violated two court orders: "The record amply supports the trial court's exercise of its discretion in dismissing the complaint as a sanction for the repeated efforts of the plaintiffs to thwart discovery, including the violation of two discovery orders." (*Id.* at 496). There has been no violation of a court order by Plaintiffs.

Defendants also contend that even if the Court views counsel's conduct "as something less than willful," the appropriate remedy is a set of issue and evidence sanctions that prevents Plaintiffs from "exploiting" the asymmetry of evidence. Defendants provide no authority in support of this assertion, and the authorities state otherwise.

As the court held in *New Albertsons, Inc., supra:*

> Our conclusion that the sanctions are unauthorized does not preclude an instruction that if the jury finds that Albertsons intentionally destroyed evidence, it may infer that the evidence would have been unfavorable to Albertsons. (See CACI No. 204.) Such an instruction is appropriate if there is evidence of willful suppression, that is, evidence that a party destroyed evidence with the intention of preventing its use in litigation. [citations] If so instructed, the jury may consider all relevant and admissible evidence in determining whether evidence was willfully suppressed, including the letter requesting the preservation of evidence.

		(*New Albertsons, Inc., supra,* 168 Cal.App.4th at 1434 [internal citations omitted]). The court went on to state: "The circumstances here involve neither the failure to comply with a discovery obligation nor the destruction of particularly probative evidence. We conclude that the imposition of sanctions in these circumstances was an abuse of discretion and that the sanctions order must be vacated." (*Id.* at 1434). Similarly, here, Defendants are seeking jury instruction CACI no. 204; issue sanctions establishing that: (a) the destroyed Honda HR-V EDR data would have contained material evidence relevant to vehicle speed, braking, steering input, throttle application, seat belt status, and Plaintiff Doan's comparative fault; (b) Defendants were deprived of the opportunity to inspect and analyze that evidence because of Plaintiffs' failure to preserve the Honda HR-V and its EDR data; and (c) Plaintiffs may not dispute that the destruction of the Honda HR-V materially impaired Defendants' ability to defend against Plaintiffs' claims and allegations concerning liability and comparative fault; and evidence sanctions precluding Plaintiffs and their expert witnesses from offering testimony, opinions, reconstruction analysis, or argument concerning the Honda HR-V's pre-impact speed, braking, steering, throttle application, timing, distance, seat belt usage, or other vehicle dynamics that would ordinarily be reflected in EDR data. Defendants have not cited to any authority which would suggest that an attorney who requested a litigation hold but did not take additional steps to "confirm" the litigation hold must be subject to issue or evidence sanctions. Accordingly, this request is denied. Finally, Defendants request monetary sanctions on the basis that "Defense counsel has extended hundreds of hours seeking information as to the location of the 2024 Honda HR-V, the EDR data and whether the EDR was ever obtained, inspected or preserved." (Decl. of Mlynarska, ¶ 15). Defendants request sanctions pursuant to Code Civ. Proc. § 2023.030(a), which provides, in part: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." The court finds that Defendants have not established that Plaintiffs engaged in the misuse of the discovery process. As stated above, Plaintiffs' counsel requested a litigation hold, and the destruction of

		the vehicle was not due to the actions of Plaintiffs and/or their counsel. Furthermore, Defendants provide that in Plaintiff Megan Doan's July 2025 responses to written discovery, she specifically stated that the vehicle "was last in the possession of Allstate Insurance." Defendants also provide that they did not depose or subpoena Allstate until March 4, 2026. (Decl. of Mlynarska, Ex. L). Defendants have not established why "hundreds of hours" was necessary to obtain this information. Accordingly, the court denies the request for monetary sanctions. Plaintiffs shall give notice of both rulings.
12	National Funding, Inc. vs. Martinez-Interiano	**OFF CALENDAR**
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